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U.S. Department of State Diplomacy in Action

Tajikistan

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Tajikistan is ruled by an authoritarian regime that has established some nominally democratic institutions. President Emomali Rahmonov and a clique of fellow natives of the Kulyab region continued to dominate the Government; however, Rahmonov's narrow base of support limited his control of the entire territory of the country. Rahmonov won reelection as President in November elections that were flawed seriously and were neither free nor fair. As part of the peace accords that ended the civil war, members of the opposition took approximately one-third of the high level positions in the Government. Although the Constitution was adopted in 1994 and amended in September, political decisionmaking normally takes the form of power plays among the various factions formerly on one side or the other during the civil war that now make up the Government. The legacy of civil war continued to affect the Government, which was faced with problems of demobilizing and reintegrating former opposition troops and maintaining law and order as rival armed factions competed for power. The Constitution provides for an independent judiciary; however, it is not independent in practice.

The Ministries of Interior, Security, and Defense share responsibility for internal security, although the Government actually relies on a handful of commanders who use their forces almost as private armies. Some regions of the country remained effectively outside the Government's control, and government control in other areas existed only by day, or at the sufferance of local opposition commanders. The soldiers of some of these commanders are involved in crime and corruption. The Russian Army's 201st Motorized Rifle Division, part of a Commonwealth of Independent States (CIS) peacekeeping force established in 1993, remained in the country and continued to have a major influence on political developments. Some members of the government security forces and government-aligned militias committed serious human rights abuses.

The economy is a state-controlled system making a difficult transition to a market-based one. Most of the work force is engaged in agriculture, part of which remains collectivized. Government revenue remains highly dependent on state-controlled cotton production. The small industrial sector is dominated by aluminum production (another critical source of government revenue), although most Soviet-era factories operate at a minimal level, if at all. Small-scale privatization is over 60 percent complete, but medium- to large- scale privatization still is stalled. Many, but not all, wages and pensions are being paid. The country is poor, with a per capita gross national product of approximately \$182 according to government sources; other estimates are lower. The failure of the Soviet economic system has been accompanied by a rise in narcotics trafficking and other forms of corruption. This development has led to clear disparities of income between the vast majority of the population and a small number of former progovernment and opposition warlords, who control most of the criminal sectors of the economy.

The Government's human rights record remained poor, and the Government continued to commit serious abuses. The Government limits citizens' right to change their government and prevented free and fair elections. The November presidential elections were flawed seriously. Some members of the security forces were responsible for killings and tortured, beat, and frequently abused detainees. These forces were also responsible for threats, extortion, looting, and abuse of civilians. Certain battalions of nominally government forces operated quasi-independently under their leaders. Impunity remains a problem and the Government prosecuted few of the persons who committed these abuses. Prison conditions remained harsh and life threatening. The Government continued to use arbitrary arrest and detention, as well as arresting persons for political reasons. Lengthy pretrial detention remained a problem. Basic problems of rule of law persist. There are often long delays before trials, and the judiciary is subject to political and paramilitary pressure. The authorities infringed on citizens' right to privacy.

The Government continued to restrict severely freedom of speech and of the press, and essentially controls the electronic media. The Government denies opposition access to state-run radio and television; however, opposition newspapers begun in 1998 continued to publish, and a number of small television stations were operated by nongovernmental organizations. Journalists practice self-censorship. The Government restricts freedom of assembly and association by exercising strict control over political organizations; it banned two opposition parties and prevented another from being registered. The Government prevented all but one opposition candidate from registering for the presidential election. There are some limits on freedom of religion, and there are some restrictions on freedom of movement. The Government still has not established a human rights ombudsman position, despite a 1996 pledge to do so. Violence against women is a problem, as is discrimination against women, the disabled, and religious and ethnic minorities. Child labor is a problem. There were some instances of forced labor, including by children. Trafficking in women is a problem.

Some former opposition troops committed serious abuses, including killings and abductions. There were credible reports that opposition units threatened, extorted, and abused the civilian population.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were a number of extrajudicial killings; however, it was difficult to estimate the number or to attribute responsibility in many cases. Some killings were committed by competing government forces for varying motives, both political and economic.

Harsh prison conditions and lack of food and adequate medical treatment resulted in a significant number of deaths of prisoners while in custody (see Section 1.c.).

A number of local officials, businessmen, and professional figures were killed during the year, for a variety of political, economic, and ethnic reasons. Tolib Boboev, an official of the banned opposition Party of Popular Unity, was killed by masked gunmen while visiting the home of his son on January 2. Socialist Party leader and parliamentary human rights commission chairman Safarali Kenjaev was shot and killed by unidentified gunmen outside his home in Dushanbe on March 30; two bodyguards and his driver also were killed. At the time of his death, it was widely speculated that Kenjaev planned to run in the presidential elections. Ministry of Interior press center chief Jumakhona Khotami also was shot and killed near Dushanbe (see Section 2.a.). In addition a number of high-ranking figures associated with various competing paramilitary factions were killed. In most cases, suspects have not been identified. The competence of the investigations and their independence from official interference was questioned. A number of apparent murders essentially were concealed, with official news noting only that the individual died.

A major serving with the Russian border guards was shot and killed in Dushanbe on November 25. In October and November, two senior Tajik military officials were murdered.

Both the Government and the opposition used land mines during the civil war. Some unmarked mine fields in the Karetegin Valley probably killed innocent civilians. The Government also has laid numerous minefields along the border with Afghanistan, although the primary victims are believed to be border infiltrators. Some killings were committed by former opposition forces, and others by independent warlords answering to neither the Government nor the opposition.

In the case of the 1998 killings of four United Nations personnel in the Karateqin Valley, the Government tried and convicted three individuals arrested for the killings in late 1998, and executed them early in the year.

In January warlord Ravshan Gafurov confessed to the shooting of leading opposition and former journalist figure Otakhon Lafiti on September 22, 1998; Gafurov also confessed to 25 other murders. In December the Government announced the name of the individual who murdered prominent academician Muhammad Osimi in 1996 and said that he had fled the country.

There were no developments in the 1997 killings of several Russian servicemen, or in the 1996 murder of the Mufti of Tajikistan.

b. Disappearance

There were a number of disappearances during the year. The taking of hostages for revenge or for bargaining purposes remained a common occurrence. Political pressure and a lack of professional resources hamper police efforts to investigate disappearances.

The 5-year-old nephew of opposition presidential candidate Davlat Usmon was kidnaped from his parents' home several days before the presidential election; he was recovered unharmed on the outskirts of Dushanbe a day later.

Forces aligned with the opposition were involved closely with the Uzbek militants who took Japanese and Kyrgyz nationals hostage in Kyrgystan, then brought them into Tajikistan, where eventually they were released.

There were no developments in the 1996 disappearance of Zafar Rahmonov, the opposition cochairman of the Joint Commission on Cease-fire Observation.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits torture; however, the Government uses it in practice. Security officials, particularly those in the Ministry of Interior, regularly beat detainees in custody and use systematic beatings to extort confessions. There were credible allegations that security forces illegally detained, mistreated, and beat members of opposition parties or their relatives (see Sections 1.d. and 1.f.). Impunity remains a serious problem, and the Government prosecuted few of the persons who committed these abuses. However, several security officials were convicted of abuses in Kurghanteppa during the year.

The Government has acknowledged that the security forces were corrupted by criminal elements and that most citizens chose to keep silent in the face of official mistreatment rather than risk retaliation by the police. In the southern region of Shaartuz, the Tajik Border Forces (TBF) control much of the drug trade, and the local population has made numerous complaints of harassment and human rights abuses committed by the TBF.

In November two individuals identifying themselves as Ministry of Interior officials apprehended former Kabul University professor Nurshahi Shahkur, an Afghan national living in Dushanbe. They took him to the Ministry of Interior building, where they tortured and beat him in an apparent extortion attempt. A doctor later certified that Shahkur was tortured, and the Afghan Embassy in Dushanbe raised the issue with the Government. In December three masked men attacked Mukhiddin Idizoda, deputy editor of the opposition newspaper Nadzhot (see Section 2.a.).

There were a number of shootings, bombings, and terrorist attacks that resulted in nonlethal injuries and serious property damage. A number of civilians were injured in fighting between rival paramilitary factions that broke out repeatedly in Dushanbe, often in crowded areas such as the Green Bazaar. An October bomb blast in Dushanbe's central department store, the TsUM, injured three persons.

Prison conditions remain harsh and life threatening. Prisons generally are overcrowded, unsanitary, and disease-ridden, producing serious threats to many prisoners' health. This problem reflects in part the self-funded status of most prisons, under which before 1992 prisoners grew much of their own food or made goods for sale. The general collapse of governmental programs and of the economy also meant the virtual disappearance of these programs. Some food production has resumed, but it is still inadequate. Some prisoners die of hunger. Family members are allowed access to prisoners only after a guilty verdict, in accordance with the law.

There was no official action against government forces for the deaths of 26 prisoners when they retook Khojand prison in 1997. Abdulhafiz Abdullojonov, the brother of a political opponent of the President, was arrested in May 1997 on narcotics charges that appear fabricated and sentenced to death in 1998. Despite appeals for clemency based on a diagnosis of terminal cancer, Abdullojonov remained in prison and claimed to have been denied proper medical treatment. Government sources say that he was executed early on in the year, although other sources maintain that he simply died in prison of cancer.

The Government has invariably denied requests by the International Committee of the Red Cross (ICRC) to make prison visits in a manner consistent with the ICRC's standard modalities.

d. Arbitrary Arrest, Detention, or Exile

The Government continued to arrest and detain citizens arbitrarily. The Criminal Code has not been amended significantly since independence, and it therefore retains many of the defects inherited from Soviet times. The Government claims that revision of the Criminal Code is a high priority, but due to the size and complexity of the code, the small parliamentary staff, and limited time in session for the Majlisi Oli (parliament), progress has been slow. There is no projected completion date, and there has been no indication of progress toward a comprehensive revision of the Criminal Code. However, during the year, the law was changed to increase punishment for crimes such as rape, theft, and illegal drug use. The system allows for lengthy pretrial detention and provides few checks on the power of procurators and police to arrest persons. Public order, which broke down during the civil war, has yet to be restored fully, and the virtual immunity from prosecution of armed militia groups has eroded further the integrity of the legal system.

Police legally may detain persons without a warrant for a period of 72 hours, and the procurator's office may do so for a period of 10 days after which the accused must be charged officially. At that point, the Criminal Code permits pretrial detention for up to 15 months. The first 3 months of detention are at the discretion of the local procurator, the second 3 months must be approved at the regional level, and the Procurator General must sanction the remaining time in detention. The Criminal Code maintains that all investigations must be completed 1 month before the 15-month maximum in order to allow the defense time to examine government evidence. There is no requirement for judicial approval or for a preliminary judicial hearing on the charge or detention. In criminal cases, detainees may be released and restricted to their place of residence pending trial. Once a case is entered for trial, the law states that it must be brought before a judge within 28 days. However, it is common for cases to be delayed for many months before trial begins. There is no provision for bail, and lengthy pretrial detention is a problem.

The Government made politically motivated arrests, and there are credible allegations of dozens of cases of illegal government detention of members of opposition political parties or their relatives. In most cases, the security officers, principally personnel from the Ministry of Internal Affairs or the Ministry of Security, do not obtain arrest warrants and do not bring charges. Those released sometimes claimed that they were mistreated and beaten during detention (also see Section 1.c.).

Opposition sources maintain that security forces detained dozens of persons unlawfully without charge. Since the law precludes visits to persons in pretrial detention, it is not possible to assess these allegations. There could be as many as several hundred political detainees, but the absence of ICRC or other access to these persons makes any estimate uncertain.

Militia troops detained Abdurahman Karimov, chairman of the Party of Justice-Seekers, in October, holding him incommunicado for 10 days before finally releasing him.

In response to a May 4 appeal by the Commission for National Reconciliation, President Rakhmonov charged senior government officials with drafting a decree on terminating criminal proceedings against opposition fighters and granted amnesty to those already sentenced for their actions during the civil war. Human Rights Watch reported that by December, the Government had granted amnesty to approximately 5,000 United Tajik Opposition (UTO) fighters.

Border Force units routinely take family members of deserters hostage and hold them until the deserters return to duty.

The Constitution states that no one can be exiled without a legal basis; no laws have been passed so far setting out any legal basis for exile. There were no reports of forced exile. Some opponents of the Government are in self-imposed exile.

e. Denial of Fair Public Trial

The 1994 Constitution states that judges are independent and subordinate only to the Constitution and the law, and prohibits interference in their activities; however, in practice the political leadership and, in many instances, armed paramilitary groups directly influence judicial officials at all levels. Under the Constitution, the President has the right, with confirmation by the Parliament, both to appoint and to dismiss judges and prosecutors. Judges at the local, regional, and republic level are for the most part poorly trained and lack understanding of the concept of an independent judiciary. Bribery of prosecutors and judges appears to be a common practice.

The court system, largely unmodified from the Soviet period, includes city, district, regional, and national levels, with a parallel military court system. Higher courts serve as appellate courts for the lower ones. The Constitution establishes additional courts, including the Constitutional Court, which began to function in 1997.

According to the law, trials are public, except in cases involving national security or the protection of minors. The court appoints an attorney for those who do not have one. Defendants may choose their own attorney but may not necessarily choose among court-appointed defenders. In practice arrested persons often are denied prompt, and in some cases any, access to an attorney.

There was no information during the year concerning Bahrom Sodirov, who was charged in the February 1997 kidnaping of the Minister of Security, 5 UNMOT personnel, and 11 others. Sodirov was arrested soon after the hostages were released. His trial from which observers were barred, was suspended in late 1997 and has not resumed.

The procurator's office is responsible for conducting all investigations of alleged criminal conduct. According to the law, both defendant and counsel have the right to review all government evidence, to confront witnesses, and to present evidence and testimony. No groups are barred from testifying, and all testimony theoretically is given equal weight, regardless of the ethnicity or gender of the witness. Ministry of Justice officials maintain that defendants benefit from the presumption of innocence, despite the unmodified Soviet legal statute, which presumes the guilt of all persons brought to trial. In practice, bringing charges tends to suggest guilt to most citizens.

The Government holds political prisoners, including opposition party activists, although estimates of the number of prisoners vary widely. The Government and the Tajik opposition exchanged multiple lists of prisoners of war and political prisoners for exchange as a result of the 1997 inter-Tajik talks in Moscow. By November the Government had released all UTO prisoners, with the exception of six individuals, named on lists submitted by the UTO, of whom the Government claimed no knowledge. The Government accepted the UTO's 1998 claim that it released all POW's that it held.

Abdulfazil Abdullojonov, whose arrest and unfair trial in 1997 were politically motivated, remained a political prisoner until his mysterious death early in the year (see Section 1.c.).

On December 28, a court in the city of Khujand imposed death sentences on two participants in the failed November 1998 coup headed by former army colonel Mahmud Khudoberdiev. A further 25 Khudoberdiev supporters received prison sentences ranging from 9 to 21 years. The trial was closed to the public and held without publicity.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution provides for the inviolability of the home and prohibits interference with correspondence, telephone conversations, and postal and communication rights, except "in cases prescribed by law;" however, the authorities continued to infringe on citizens' right to privacy. Except for some special circumstances, police may not enter and search a private home without the approval of the procurator. When they do enter and search without prior approval, they must then inform the procurator within 24 hours. Police also are permitted to enter and search homes without permission if they have compelling reason to believe that a delay in obtaining a warrant would impair national security. There is no independent judicial review of police searches conducted without a warrant.

Government forces beat and arrested the relatives of members of opposition parties (see Sections 1.c. and 1.d.). Security forces also detained relatives of deserters in order to compel deserters to return to duty (see Section 1.d.).

In some cases, the security services apparently prevented members of banned political parties from finding employment; others were fired or demoted when they refused to join the ruling party (see Section 3).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government severely restricts this right in practice. Journalists, broadcasters, and individual citizens who disagree with government policies cannot speak freely or critically. The Government exercises control over the media both overtly through legislation and less obviously through such mechanisms as "friendly advice" to reporters on what news should not be covered. The Government also controlled the printing presses and the supply of newsprint and broadcasting facilities, and subsidizes virtually all publications and productions. Editors fearful of reprisals exercise careful self-censorship.

The number of local newspapers is increasing, but only a handful of them attempt to cover serious news. Several are organs of political parties or blocs. The Government exerted pressure on newspapers critical of it, particularly the newspaper Jumbesh, which published the views of the UTO and other opposition parties. The Government printing press has refused to print this newspaper since mid-October.

The two opposition newspapers that began publication in 1998, Mujahed (Voice of the Mujahad) and Muzhda (Good News) are no longer published. Najot, the new official paper of the Islamic Renaissance Party, began weekly publication in October.

On July 4, Ministry of Interior press center chief Jumankhon Hotami was shot and killed near Dushanbe, according to family members, who also said that on at least one occasion he had fallen out of favor with members of the Government for going too far into his research on the drug trade, which resulted in the temporary suspension of his television program on the subject (see Section 1.a.). Three armed, masked men attacked Mukhiddin Idizoda, deputy editor of the opposition newspaper Nadzhot, near his home on December 27. The newspaper is funded by the opposition Islamic Renaissance Party (see Section 1.c.). Sergei Sitkovskii, a Russian national working for the newspaper Tojikiston, was killed in a car accident in September. He was preparing an article on narcotics trafficking at the time and papers were removed from his person at the scene of the accident. The Government has stated that the case is closed.

According to a November Human Rights Watch report, no independent radio stations have licenses to operate, and the newspapers of most opposition political parties are unable to publish. Independent television stations continued to experience administrative and legal harassment, and access to the state-run media by opposition politicians is virtually nonexistent. There is one government-run television network; its several local stations cover regional and local issues from an official point of view. There are 36 nongovernmental television stations, not all of which are operating at any one time and only a handful of which can be considered genuinely independent. Some have independent studio facilities and do not have to use official studios. To obtain licenses, independent television stations must work through two government agencies, the Ministry of Communications and the State Committee on Radio and Television. At every stage of the very time consuming bureaucratic process, there are high official and unofficial fees. The news agency Asia-Plus continued to wait for the broadcasting license for which it had applied earlier, but at year's end, it had not received a license.

Access to the Internet is limited, in part, by state control. A single company holds a government-granted monopoly on Internet access services. As a result of its high fees and limited capacity, access to information over the Internet is out of reach for most citizens.

Academic expression is limited principally by the complete reliance of scientific institutes upon government funding, and in practical terms by the need to find alternate employment to generate sufficient income, leaving little time for academic writing.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of peaceful assembly; however, the Government restricts this right in practice and exercises strict control over organizations and activities of a political nature. Nonpolitical associations, such as trade unions, are allowed to meet. Registered organizations must apply for a permit from the local executive committee in order to organize legally any public assembly or demonstration. Sometimes this right is honored, but the Government subsequently has been known to take reprisals against organizers. Because fear of reprisal is so widespread, public assemblies or demonstrations of a political nature were rare during the year.

The Constitution provides for freedom of association; however, the Government restricts this right in practice by exercising strict control over organizations and activities of a political nature. Although freedom of association is permitted for nonpolitical associations (including trade unions), this right is circumscribed further by the requirement in the law on nongovernmental associations that all organizations first must register with the Ministry of Justice. This process often is slowed by the requirement to submit documents in both Russian and Tajik. The Ministry of Justice's verification of the text inevitably delays the granting of registration. Once registered, an organization may apply for a permit to hold a public assembly or demonstration.

There are six political parties registered with the Government. The Party of Popular Unity was banned in December 1998, and the Agrarian Party was banned in April; the Government refused its request to reregister in October. The Party of Economic and Political Revival of Tajikistan was banned in March because of insufficient membership. The Party of Justice and Progress has not been banned, but the Government denied it registration. Several months after lifting the ban on the Democratic Party (Almaty platform), the Government banned the Democratic Party (Tehran platform), ostensibly on the grounds of insufficient membership.

In May 1998, the Parliament passed a law prohibiting the creation of political parties with a religious orientation. The opposition UTO, international organizations, and foreign governments strongly criticized the law for violating the spirit and the letter of the 1997 peace agreement. In June 1998, President Rahmonov established a Special Conciliation Commission to resolve the dispute, which proposed compromise language for the law, banning political parties from receiving support from religious institutions. A new version of the law including the compromise language was passed in November 1998. Subsequently, parties of religious character are permitted to register; however, only one such party, the Islamic Renaissance Party, has done so.

The leadership of opposition parties reported threats and harassment of party members by the authorities. In some cases, members of banned political parties were unable to find employment, apparently at the direction of security services; others were fired or demoted when they refused to join the People's Democratic Party of Tajikistan, the ruling party (see Section 1.f.).

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respects this right in practice; however, there are some exceptions. According to the Law on Freedom of Faith, the Committee on Religious Affairs under the Council of Ministers registers religious communities and monitors the activities of the various religious establishments. While the official reason given to justify registration is to ensure that religious groups act in accordance with the law, the practical purpose is to ensure that they do not become overly political. President Rahmonov has defended secularism aggressively and occasionally criticized Islam as a political threat. In 1997 the Government subordinated the Council of the Islamic Center to the Committee on Religious Affairs; however, the observant Muslim community apparently did not object to this step.

Although unregistered, recently organized religious communities, such as Baha'i and Hare Krishna groups function with no apparent formal restriction.

In May 1998, Parliament passed a law prohibiting the creation of political parties with a religious orientation. The UTO, the largest component of which is the Islamic Renaissance Party (IRP), along with international organizations and foreign governments, strongly criticized the law for violating the June 1997 peace agreement, which included a government commitment to lift the ban on member parties of the UTO. Subsequently, the amendments to the Constitution approved by the September referendum authorized political parties with a religious orientation.

Aside from the registration requirement, there are few official constraints on religious practice, but government officials sometimes issue extrajudicial restrictions. For example, the mayor of Dushanbe prohibited mosques from using microphones for the five-times-daily call to prayer. There are also reports that some local officials have forbidden members of the Islamic Revival Party from speaking in mosques in their region. However, this restriction is more a reflection of political rather than religious differences. In Isfara, following allegations that a private Arabic language school was hosting a suspected Uzbek terrorist, the authorities imposed restrictions on private Arabic language schools (to include restrictions on private Islamic instruction). These restrictions appear to be based on political concerns, but the effect on private religious instruction is also clear.

The Government imposed restrictions on the number of pilgrims allowed to go on the Hajj in 1998. Individuals were not permitted to travel in a personal vehicle; persons were required to travel by government-owned transportation, primarily buses. There were regional quotas on the number of pilgrims, which led to corruption as places were sold. Comparable restrictions continued during the year.

Missionaries are not restricted legally and proselytize openly; however, the Government's fear of Islamic terrorists prompts it to restrict visas for Muslim missionaries.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for these rights; however, the Government imposes some restrictions on them.

The Government has stipulated that both citizens and foreigners are prohibited from traveling within a 15-mile zone along the republic's borders with China and Afghanistan without permission from the Ministry of Foreign Affairs. This restriction is not always enforced along the western part of the border with Afghanistan, but a special visa generally is required for travelers, including international workers and diplomats, to Gorno-Badakhshan. Travel to border areas in the southwest is not restricted significantly, except occasionally at the border, which is closed intermittently by one side or the other.

The Ministry of Security inhibits freedom of travel by requiring citizens who wish to travel abroad to obtain an exit visa. This process sometimes includes lengthy interviews. The Ministry of Security sometimes withholds or delays exit visas when it believes that other ministries or NGO's are infringing upon its jurisdiction and have not adhered to its formalities for foreign travel.

Residents of Dushanbe and those travelers who wish to remain longer than 3 days are supposed to register with central authorities, and regulations require registration at the local Ministry of Interior office upon arrival and departure from a city. However, these regulations largely are ignored in practice. There are no legal restrictions on changing residence or workplace.

There is no law on emigration. Persons who wish to migrate within the former Soviet Union notify the Ministry of Interior of their departure. Persons who wish to emigrate beyond the borders of the former Soviet Union must receive the approval of the relevant country's embassy in order to obtain their passport. Persons who settle abroad are required to inform the Tajikistan embassy or Tajikistan interests section of the nearest Russian embassy or consulate.

Persons who wish to return to Tajikistan after having emigrated may do so freely by submitting their applications to the Tajikistan embassy or Tajikistan interests section of the nearest Russian embassy or consulate. The Government adjudicates requests on a case-by-case basis. There is no indication that persons, other than those who fled Tajikistan for political reasons after the civil war, are not permitted to return freely. Some persons currently active with the Tajik opposition, whose travel documents expired, at times have had difficulty obtaining new documents permitting them to return.

A number of persons remained internally displaced as a result of the civil war, but their total number was difficult to estimate. The UNHCR no longer has estimates on the number of internally displaced persons (IDP's). These persons live throughout the country and are not concentrated in a single geographic area. The Government provides protection and modest assistance, and it actively cooperates with international organizations to resettle them. Resettlement is voluntary; IDP's are not returned forcibly to dangerous conditions.

The Constitution provides for the grant of asylum to persons who have entered the country seeking protection, in accordance with U.N. refugee criteria.

Under the 1994 refugee law, a person granted refugee status is provided with the right to work and to move freely throughout the country. The Central Department of Refugee Affairs under the Ministry of Labor has responsibility for the registration of refugees.

The Government cooperates with the U.N. High Commissioner for Refugees and other humanitarian organizations in assisting refugees. The Government provides first asylum (and provided it to 1,766 Afghans and 5 Iraqis from the beginning of the year until the fall). However, the U.N. does not have statistics on the number of refugees remaining in the country after receiving asylum because the majority of such persons use the country as a transit point en route to Western Europe. There were unverifiable reports of the forced return of persons to a country where they feared persecution: part of a large group of Uzbeks (comprising a guerilla force loyal to militant Islamist Juma Namangani and approximately 1,000 dependent family members) reportedly was sent in buses back to Uzbekistan. Later, the Government allowed the remainder of Namangani's forces and their dependents to cross the border into Afghanistan. On August 27, the chairman of the security council, Amirkul Azimov, announced that all the Uzbek citizens living in the Karategin valley had left the country.

The Central Department of Refugee Affairs (CDR), under the Ministry of Labor, handles the registration of Afghan refugees in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and Tajikistan's 1994 Law on Refugees. An unresolved problem stems from the unofficial government policy of denying official status to Afghan spouses of returning Tajik refugees. The UNHCR has aided their admission to the country (avoiding their being jailed as illegal immigrants); however, their legal status remains uncertain. There were no cases during the year.

Following the signing of the 1997 peace accords, all Tajik refugees from northern Afghanistan who wished to return, as well as thousands from the Commonwealth of Independent States (CIS), returned to Tajikistan. There was incremental progress during the year in returning occupied houses to their original UTO fighter owners. However, problems remain, but they are almost entirely in the Khatlon region.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides for the right of citizens to change their government; however, the Government limits the right of citizens to change their government peacefully and freely. In practice President Rahmonov's Government remained dominated by a clique from the Kulyab region, although 30 percent of government positions (including the post of first deputy prime minister) were allocated to members of the UTO in accordance with the 1997 peace agreement. Although the peace accords called for parliamentary elections in 1998, the Commission for National Reconciliation has not yet completed necessary preliminary work, and the elections have not yet been held. Some opposition party activists remain either jailed or in self-exile abroad.

Members of the current Majlisi Oli took office in 1995 after elections marked by numerous irregularities, such as voter intimidation and ballot-box stuffing. The Majlisi Oli is not considered a truly independent parliament, although a number of its members nevertheless belong to parties or groups that oppose the Government vigorously on specific issues.

The results of a September referendum on amendments to the Constitution likely reflected overall public opinion accurately. The amendments concerned extending the length of the presidential term from 5 to 7 years; permitting political parties with religious orientation; and replacing a part-time, unicameral parliament with one that was full-time and professional. The Government announced that 91.55 percent of the electorate voted and that 71.79 percent approved the amendments. However, the conduct of the referendum was flawed in numerous ways. Observers noted voters casting ballots for others not present, there was a lack of ballot secrecy, and there were cases of unprofessional conduct on the part of polling station staff. Eyewitnesses reported that voter turnout was substantially lower than official statistics indicated, and perhaps did not reach 50 percent.

The Government's handling of preparations for the November presidential elections cast doubt on the possibility that there could be a peaceful transfer of power through genuinely free and fair elections. Candidates had to contend with a cumbersome registration process requiring them to obtain large numbers of signatures during a short period of time. Only President Rahmonov, who used his political apparatus throughout the country for this purpose, probably ahead of time, was able to do so by the deadline. Prospective opposition candidates complained that local, progovernment administrators prevented them from gathering signatures. Days before the election, an apparently arbitrary Supreme Court decision allowed one of the three aspiring opposition candidates, Economics and Foreign Economic Relations Minister Davlat Usmon of the Islamic Renaissance Party, to register. Although Davlat announced that he would boycott the election unless the other two opposition figures also were allowed to run, the Central Election Commission included his name on the ballot. Davlat told journalists in Dushanbe on November 7 that he believed the outcome of the election was rigged and that only 20 to 30 percent of voters had participated. President Rahmonov enjoyed a virtual monopoly over mass media access, and there were obvious irregularities in the operation of polling places, such as multiple voting by pro-Rahmonov supporters. The Government claimed that 98 percent of the electorate voted and that 96 percent of those voting supported Rahmonov; the claim lacked credibility.

On December 3, government and opposition representatives on the Commission for National Reconciliation reached agreement on the number of deputies to be elected to each chamber of the new parliament; the lower chamber is to consist of 63 deputies and the upper chamber is to have 33 senators.

There are no formal barriers to women's participation in the electoral process; however, they are underrepresented in government and politics. Since the removal of Soviet-era quotas the number of female deputies has declined. At year's end, there were five female deputies in the Parliament, one female deputy serving as deputy prime minister, one female deputy chairman of the Parliament, one female minister, and several female deputy ministers.

While ethnic Uzbeks make up some 25 percent of the total population, they are underrepresented in the political system. President Rahmonov's Government actively has sought to keep ethnic Uzbek leaders, such as Colonel Mahmud Khudoberdiev, out of political life.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The Government's record on dealing with international and nongovernmental investigation of alleged human rights abuses was mixed. Fear of persecution by government or paramilitary elements tended to discourage citizens from forming their own human rights organizations, although the Government did not block the registration of local NGO's dealing with human rights; several such organizations exist. The Government did not prevent actively citizens or government officials from participating in international and local seminars sponsored by the OSCE, the ICRC, United Nations agencies, NGO's, and foreign governments on such topics as the rule of law, an independent judiciary, and international humanitarian law. Discussion at such seminars, including those held in Tajikistan, at times was critical of the Government.

The international human rights group Human Rights Watch/Helsinki operates without government restriction, investigating and publishing its findings on human rights cases. Government officials are generally cooperative in dealing with the organization; however, they are not responsive to its views.

Although the Government agreed in 1998 to establish a national human rights institution and ombudsman position with OSCE financial support, it decided in 1996 to establish such functions itself. However, thus far no institution or ombudsman position has been established.

Within the Parliament, the Committee on Legislation and Human Rights is charged with monitoring human rights violations; however, like the rest of the Parliament, it is not independent in practice.

The OSCE mission in Dushanbe continues to monitor human rights issues with the help of its several field offices. However, these field offices experienced varying levels of cooperation with local authorities. The OSCE opened field offices in Gharm and Khojand following Government permission to do so and now has five field offices in the country. The Government continued to refuse the ICRC unconditional access to prisons in accordance with standard ICRC modalities, despite letters received in the past from senior government officials that such access would be forthcoming and further efforts by the ICRC during the year.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution provides for the rights and freedoms of every person regardless of nationality, race, sex, language, religious beliefs, political persuasion, social status, knowledge, and property. It also explicitly states that men and women have the same rights. However, in practice there is discrimination as a result of cultural traditions and the lingering hostilities from the 1992 civil war.

Women

Wife beating is a common problem. In both urban and rural areas, many cases of wife beating go unreported and many of those cases reported are not investigated. There is a widespread reluctance to discuss the issue or provide assistance to women in abusive situations. In addition abduction of young women, who are raped or forced to marry their abductors, is widely reported.

The Criminal Code prohibits rape; however, it is widely believed that most cases are unreported, and the problem is believed to be growing, particularly in urban areas. The threat of rape often is used to coerce women. There are no special police units for handling these cases. One rape crisis center was established by a local NGO in Dushanbe in 1993. The situation is

exacerbated by a general decline in public order, so that in many cities, including Dushanbe, women exercise particular care in their movement, especially at night.

The law prohibits keeping brothels, procuring, making, or selling pornography, infecting another person with a venereal disease, and sexual exploitation of women; however, prostitutes operate openly at night in certain urban areas.

There are credible reports of trafficking in women (see Section 6.f.).

There have been reports of physical harassment of women by conservative Muslims in rural areas for not wearing traditional attire.

According to the law, women have equal rights with men. Articles in the Criminal Code protect women's rights in marriage and family matters. Girls often are pressured to marry men that they do not choose themselves, and illegal polygamy is increasingly common.

Traditionally there has been a high level of female participation in the work force and in institutes of higher learning. There is no formal discrimination against women in employment, education, or housing, and in urban areas women can be found employed throughout government, academic institutes, and enterprises. Some women hold the same jobs as men, although not in equal numbers. Women officially receive the equal pay for equal work, but this regulation is not always the case in practice. However, divorce rates in urban areas are comparatively high, and women tend to carry the burden of child-rearing and household management, whether married or divorced. In rural areas, women tend to marry younger, have larger families, and receive less university education than women in cities. In rural and traditional areas, women receive less education in general, often leaving school after the eighth year. Due to the prevalence of large families, women in rural areas are also much less likely to work outside the home. Inheritance laws do not discriminate against women; however, in practice, inheritances may pass disproportionately to sons.

Children

The Government's lack of financial resources left it unable to fulfill its extensive commitments to children's rights and welfare, and the government social security network for child welfare appeared to continue to deteriorate. Women are provided 3 years of maternity leave and monthly subsidies for each child; health care is free. Education is compulsory until age 16; however, the law is not enforced. Public education is intended to be free; however, a lack of resources has caused the public school system to deteriorate to the point at which it barely functions. Parents who can afford to do so send their children to private schools (a number of which have been founded since the end of the Soviet period), or join together in groups that hire teachers to give their children lessons for a fee. Public education is intended to be universal; however, a significant number of school-age children--possibly as high as 20 or 25 percent in some areas--work instead of attending school. The old Soviet practice, which is now illegal, of closing high schools at cotton harvest time and putting the students to work in the field continues in some areas.

There is no societal pattern of abuse of children.

People with Disabilities

The 1992 Law on Social Protection of Invalids stipulates the right of the disabled to employment and adequate medical care. However, in practice the Government does not require employers to provide physical access for the disabled. Financial constraints and the absence of basic technology to assist the disabled result, in practice, in high unemployment and widespread discrimination. There is no law mandating accessibility for the disabled. There are facilities for the mentally disabled; however, funding is limited and the facilities are in poor condition. Several international NGO's provide limited assistance to persons with disabilities.

Religious Minorities

Baha'i and Hare Krishna groups experience only limited prejudice. A prominent 88-year-old member of Dushanbe's Baha'i community was killed in his home in September. Members of the Baha'i community believe that he was killed because of his religion, since none of his personal possessions were taken from the murder scene. Police made no arrests, although militant Islamists aligned with Iran are considered likely perpetrators.

Some Muslim leaders occasionally have expressed concern that minority religious groups undermine national unity.

National/Racial/Ethnic Minorities

Ethnic Uzbeks make up approximately a quarter of the population but are substantially underrepresented in official positions. The number of Uzbek language newspapers, television broadcasts, and schools has declined significantly since 1992. With the exception of the trilingual (Tajik/Uzbek/Russian) school structure, the Uzbek language has no official status. Although the Government permits a daily Uzbek radio broadcast, broadcast time is dominated by Tajik and Russian language programs. A weekly television broadcast in Uzbek ceased in August.

In practice Russian is the language of interethnic communication and widely used in government. Ethnic Russians and related Russian speakers, for example, Ukrainians, make up less than 2 percent of the population. While the Government repeatedly has expressed its desire for the ethnic Russian and Slavic population to remain, economic conditions provide little incentive for them to do so, and some local Russians and other Slavs perceive an increase in negative social attitudes toward them. A Slavic university and a Russian high school operate in Dushanbe with Russian as the language of instruction, but also include Tajik and Uzbek students. An agreement ratified by the Russian Duma in December 1996 allows for dual Russian and Tajik citizenship.

Tensions persist between ethnic Uzbeks and Tajiks in some areas; government officials have organized meetings at the local level to resolve conflicts; however, the authorities apparently have not arrested or prosecuted suspects in murders of ethnic Uzbeks in July 1998. Since the signing of the peace treaty in 1997, there have been multiple murders of ethnic Uzbeks in the Panj district. As a result of these attacks, some ethnic Uzbek families have moved to other locations in the district where Uzbeks predominate or to neighboring CIS countries.

Section 6 Worker Rights

a. The Right of Association

The Law on Social Organization and the Law on Trade Union Rights and Guarantees both provide all citizens with the right of association, including the right to form and join associations without prior authorization, to organize territorially, and to form and join federations.

The Federation of Trade Unions, a docile holdover from the Soviet era, remains the dominant labor organization, although it has since shed its subordination to the Communist Party. The Federation consists of 20 professional trade unions and claims 1.5 million members, virtually all nonagricultural workers. The separate, independent Trade Union of Non-State Enterprises has registered unions in over 3,000 small and medium-sized enterprises, totaling about 37,000 employees (according to 1998 figures). Many of the enterprises in which these two organizations are nominally present are not functioning because of the general economic depression, and the membership of both has declined as a result. The Council of Ministers formally consults both organizations during the drafting of social welfare and worker rights legislation.

The Law on Tariff Agreements and Social Partnerships mandates arbitration before a union legally may call a strike. Depending on the scale of the labor disagreement, arbitration can take place at the company, sector, or governmental level. In the event that arbitration fails, unions have the right to strike, but both labor unions have disavowed publicly the utility of strikes in a period of deepening economic crisis and high unemployment and have espoused compromise between management and workers.

There were no official, union-sanctioned strikes, nor were there any wildcat strikes (which last occurred in 1996).

The law provides citizens but not unions with the right to affiliate freely with international organizations, including international labor organizations. It does not prohibit unions from affiliating with international organizations; however, there are no unions with international affiliations.

b. The Right to Organize and Bargain Collectively

The right to organize and bargain collectively is codified in the Law on Trade Union Rights and Guarantees, the Law on Social Partnerships and Collective Contracts, and the Law on Labor Protection. Employees, members of the trade union, and management participate in collective bargaining at the company level. Negotiations involving an industrial sector include officials from the relevant ministry and members of the union's steering committee for that particular sector. As the economic situation worsens, it is becoming increasingly difficult for enterprises to engage in effective collective bargaining.

The law prohibits antiunion discrimination, the use of sanctions to dissuade union membership, and the firing of a worker solely for union activity. Any complaints of discrimination against a labor union or labor union activist are considered first by a local labor union committee and, if necessary, raised to the level of the Supreme Court and investigated by the Ministry of Justice. The law compels an employer found guilty of firing an employee based on union activity to reinstate the employee.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Constitution prohibits forced labor, except in cases defined in the law; however, it persists in some cases. No labor laws have been passed since the adoption of the Constitution in 1994. Neither the Law on Labor Protection nor the Law on Employment, both predating the present Constitution, specifically prohibits forced or compulsory labor. The Soviet practice of compelling students to pick cotton was banned officially in 1989; however, high school students in some regions still are sent to the fields to pick cotton, particularly in the Leninabad area, sometimes with compensation. Residents of state or collective farms still may be required to pick cotton, although wages usually are not paid and these institutions no longer provide the services they once did.

The law does not specifically prohibit forced or bonded labor by children; however, apart from traditional participation by children in family agricultural or home craftsman work, such practices are not known to occur.

d. Status of Child Labor Practices and Minimum Age for Employment

According to labor laws, the minimum age for the employment of children is 16, the age at which children also may leave school legally. With the concurrence of the local trade union, employment may begin at the age of 15. By law workers under the age of 18 may work no more than 6 hours a day and 36 hours per week. However, children as young as 7 years of age can perform household-based labor and participate in agricultural work, which is classified as family assistance. Many children under 10 years of age work in the bazaars or sell newspapers or consumables on the street. Trade unions are responsible for reporting any violations in the employment of minors. Cases not resolved between the union and the employer may be brought before the Procurator General, who may investigate and charge the manager of the enterprise with violations of the Labor Code.

The law prohibits forced or bonded labor by children, and such practices generally do not occur, apart from family-based work (see Section 6.c.).

e. Acceptable Conditions of Work

The President, on the advice of the Ministry of Labor and in consultation with trade unions, sets the minimum monthly wage. The nominal minimum wage per month (effective in January) was approximately \$1.50 (2,000 Tajik rubles). This rate fell far short of providing a decent standard of living for a worker and family. The Government recognizes this problem and has retained certain subsidies for workers and their families at the minimum wage. Although the Government adopted a wage indexation law in 1993 and inflation has been high, the law has not been implemented.

Although slightly improved, the economy remained extremely weak during the year, with a majority of industrial operations standing idle. As factories and enterprises either remained closed or were shut down, workers were laid off or furloughed for extended periods.

Some establishments, both governmental and private, compensated their employees in kind with food commodities or with the products produced by the enterprise. The employee could then sell or barter those products in local private markets.

The legal workweek for adults (over age 18) is 40 hours. Overtime payment is mandated by law, with the first 2 hours of overtime to be paid at 1 1/2 times the normal rate and the rest of the overtime hours at double time.

The Government has established occupational health and safety standards, but these fall far below accepted international norms, and the Government does not enforce them in practice. The enforcement of work standards is the responsibility of the State Technical Supervision Committee under the Council of Ministers. While new statistics were not available, it is virtually certain, given the continuing economic decline, that 1993 statistics, which reported that over one-fifth of the population worked in substandard conditions, greatly underreported the number working in those conditions. Workers can leave their jobs with 2 months' notice, but, given the bleak employment situation, few choose to do so. The Law on Labor Protection provides that workers can remove themselves from hazardous conditions without risking loss of employment.

f. Trafficking in Persons

The law does not prohibit trafficking in persons. There are credible reports of trafficking in women, particularly among groups involved in the narcotics trade with Afghanistan (see Section 5). Although such trafficking is illegal, the Government has taken no significant action against it.

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